

M/s Bharti Flour Mills v. Executive Engineer, E.D.D., Meerut

High Court of Judicature at Allahabad · Division Bench · 7 December 2016 · Writ-C No. 57523 of 2016 · **Second writ on later bills dismissed; Supply Code remedies saved.**

HEADNOTE

A successive writ questioning later electricity bills on technical grounds will not be entertained where the consumer already has a writ on outstanding dues, even if that petition stands dismissed in default; the consumer may approach the first writ court. Dismissal of the second petition does not affect recourse under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

M/s Bharti Flour Mills faced outstanding electricity dues and had already filed Writ Petition No. 14657 of 2016. An interim order there permitted it to deposit part of the amount demanded, on condition that it continue to pay future bills regularly. By this second writ against the Executive Engineer, Electricity Distribution Division, Meerut, the mill questioned bills for subsequent periods on technical grounds, including that the date of deposit had not been correctly mentioned. The earlier writ stood dismissed in default.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

successive writ; Code remedies saved

HOLDING

A second writ questioning subsequent electricity bills on technical grounds need not be entertained where the consumer has already invoked the writ court on outstanding dues, even if that earlier petition stands dismissed in default; the consumer may approach the first writ court. Dismissal of the successive petition does not affect recourse under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance A successive writ questioning later electricity bills on technical grounds will not be entertained where the consumer already has a writ on outstanding dues, even if that petition stands dismissed in default; the consumer may approach the first writ court.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF SUBSEQUENT BILLS AND ALLEGED INCORRECT RECORDING OF THE DATE OF DEPOSIT

Second writ not entertained; technical grounds not examined. ¶ 1